CLEMENTINA ZIMUCHA (NEE MUNYANYI)
versus
SILENCE ZIMUCHA

HIGH COURT OF ZIMBABWE
TSANGA J
10 & 11 November, 2025 & 21 January 2026

Matrimonial Trial

BM Machanzi for Plaintiff
S Chimedza Defendant

TSANGA J:

The plaintiff, **Clementia Zimucha**, instituted divorce proceedings against the defendant, **Silence Zimucha**, on the ground of irretrievable breakdown of the marriage. They have two minor children aged 13 and 15. Both parties are presently based in the United Kingdom but regard Zimbabwe as their domicile. It is common cause that the parties have not lived together as husband and wife for a period exceeding two years and that the marriage has indeed irretrievably broken down. Silence is alleged to have improperly associated with several women resulting in the birth of 10 children. On his part he acknowledged being in a civil partnership with another woman and having fathered only one other child. He too alleged an improper association on the part of his wife. What is important is that they both agree that the relationship between them has faltered beyond repair and that a decree of divorce indeed ought to be granted.

At the commencement of trial, the plaintiff withdrew her claim for maintenance of the minor children on the basis that there is already a subsisting maintenance order granted by a court in the United Kingdom. The defendant, likewise, withdrew his claim relating to the property situated in the United Kingdom, namely **9 Sholebroke Street, LS7 3HT, Leeds**, on the basis that the same would be dealt with by the courts in that jurisdiction.

In light of these withdrawals, and given the parties' agreement on the irretrievable breakdown of the marriage and on custody and access, the sole issue that remained for determination was:

Whether the defendant is entitled to an equal share of Stand 6652 Ruwa Township.

At the close of the trial, the parties committed to submitting closing submissions on the 14 and 19th of November 2025. Neither have done so and therefore I have proceeded with writing this judgment.

Evidence

Plaintiff's case

The plaintiff testified that she has been employed as a nurse in the United Kingdom for approximately eighteen years. She met the defendant in Zimbabwe in 2001. In September 2002 she travelled to the United Kingdom to pursue nursing studies, with her sister assisting her with accommodation, tuition fees, and airfare.

While in the United Kingdom, and prior to the parties' marriage, she instructed her late brother, **Wilfred Munyanyi**, to identify a vacant stand for purchase on her behalf. She testified that the purchase price for Stand 6652 Ruwa Township was paid entirely from her own earnings in the United Kingdom, derived from part-time work and vacation employment. An agreement of sale was concluded in August 2003 with one Regis Maruni. The stand was registered on 25 September 2003 in the name of her brother, as she was not physically present in Zimbabwe at the time.

At that stage, the parties were not yet married. The defendant paid lobola in 2003 and the marriage was later solemnised in terms of the Marriage Act in 2004. The defendant moved onto the stand in 2004 after being given notice at his previous residence. The plaintiff testified that she sent money for the construction of a domestic quarters and the erection of a Durawall around the property. The constructed dwelling then accommodated Silence and his relatives. Silence, at that time, was a commuter omni bus driver although he later managed to buy his own commuter bus which he later sold when he joined Clementina in the United Kingdom in 2005.

The stand was later re-registered in both parties' names in 2008 as Silence had insisted on his name being included if he was to make any financial input in developing the stand fully. Construction of the main house commenced in 2009. Clementina stated that although both parties contributed to the foundation, Silence's contribution had been minimal

in comparison to hers. She estimated that the total cost of works up to slab level was approximately US$5000.00 of which Silence contributed about US$2 000.00

Her evidence was that thereafter, the bulk of the construction and finishing of the house was in fact funded by her. The house, now a four-bedroomed dwelling with roofing, ceilings, plumbing, fitted kitchen, borehole, boundary wall and furnishings, was substantially completed by 2019, with further improvements up to 2024. She testified that she undertook extra work in the United Kingdom to fund the project and sent money through Western Union to persons managing the construction on her behalf. She produced receipts of money sent in support of this assertion. She also had to channel money for rates as her husband's brothers who had been staying there up to 2015 had not been paying these.

She estimated the defendant's overall contribution to the development of the property to be in total no more than US$5000.00. On this basis, she contended that he was not entitled to an equal share of the property and offered, at most, to compensate him to the extent of 10% of the value. More so, if she has to pay him out, she would like two years to do so as she is the one who has been largely taking care of their two children who are 15 and 13 years old. She also emphasised that his maintenance payments are erratic as he does not even pay the 300 pounds consistently. She often has to make plans to make ends meet.

Two witnesses testified in support of the plaintiff's case. Her uncle, **Michael Madondo**, confirmed that from 2015 onwards he managed construction works on the property and that all funds he received were sent by Clementina. **Martha Chamburuka**, who supervised building works from 2014, likewise testified that the funds she received through Western Union were sent by Clementina.

Defendant's case

Silence testified that he considered the plaintiff as his wife from 2002. Although in his plea he had stated that he had paid lobola or bride price in 2003, in his evidence he stated that he paid lobola in 2002 when she had already left for the United Kingdom. He attributed the inconsistency on the differing dates of his customary marriage to papers he had in his possession. When he checked one set of his papers for the payment of lobola they showed October 2002 and when he checked another it had December 2003.

He stated that he contributed substantially to the actual purchase of the stand and that the only reason the stand was initially registered in the plaintiff's brother's name, was because the seller insisted on it. He testified that he moved onto the stand in October 2003 and that he used income from his commuter omnibus business to fund the initial construction,

alleging that he spent approximately US$10 000.00 on the foundation for the main building. He submitted no proof how ever of his expenditure.

Having joined Clementina in the UK in 2005, he further alleged that the parties saved approximately US$40 000.00 over time while in the United Kingdom, which he said was used towards construction. He maintained that he deposited money into the plaintiff's account for both family upkeep and construction though Clementina indeed took out a loan to complete the house. He stated that this was pursuant to an agreement between them that because she had not contributed up to the foundation stage, she would be the one to take out a loan. According to him, their agreement was that he would take care of bills at home whilst she would service the loan.

Under cross-examination, the defendant was unable to provide specific figures relating to the alleged loan or the amounts he purportedly contributed to the actual purchase of the stand. He was also caught in a lie as he conceded that the plaintiff's sister indeed paid for the plaintiff's airfare to the United Kingdom, contrary to his pleadings in which he had claimed that he was the one who had paid for her ticket. He also conceded that he removed and retained the title deed without the plaintiff's consent, saying that he had done so as the father of the house.

Analysis

To the extent that the parties laboured the point as to whether or not the property was acquired before they married, two issues need commentary. Firstly, our law is clear in s 7(1) of the Matrimonial Causes that upon divorce what is taken into account are the assets of the spouses:

> "(1) Subject to this section, in granting a decree of divorce, judicial separation or nullity of marriage, or at any time thereafter, an appropriate court may make an order with regard to-
> **(a)** the division, apportionment **or distribution of the assets of the spouses**, including an order that any asset be transferred from one spouse to the other;

In *Ncube* v *Ncube* 1993 (1) ZLR 39 (SC) at 42B-D the meaning of the phrase "assets of the spouses" in s 7 of the Act, was elucidated upon by KORSAH JA as follows:

> "I take the phrase 'assets of the spouses' to include all such property as a spouse was possessed of at the time of the distribution, and not only what was acquired by one or the other or both the parties during the subsistence of the marriage, save such assets which are proved to the satisfaction of the court to have been acquired by a spouse, whether before or during the marriage-
> (a) by way of inheritance; or
> (b) in terms of any custom and which, in accordance with such custom, are intended to be held by the spouse personally; or
> in any manner or which have particular sentimental value to the spouse."

The term "assets of the spouses" was also further engaged with thereafter in *Gonye* v *Gonye* 2009(1) ZLR 232(SC) at 237B-D where MALABA JA (as he then was) added to the above as follows:

> "The terms used are the 'assets of the spouses' and not 'matrimonial property'. It is important to bear in mind the concept used, because the adoption of the concept 'matrimonial property' often leads to the erroneous view that assets acquired by one spouse before marriage or when the parties are separated should be excluded from the division, apportionment or distribution exercise. The concept 'the assets of the spouses' is clearly intended to have assets owned by the spouses individually(his or hers) or jointly (theirs) at the time of the dissolution of the marriage by the court considered when an order is made with regard to the division, apportionment or distribution of such assets."

Assets therefore include both non matrimonial and matrimonial property. It is of course not automatic that one benefits from property acquired prior to marriage. Whether one benefits thereafter from an asset that was acquired before marriage is a matter of fact in each case otherwise it would be meaningless to recognise that parties do acquire property before marriage. In *Believe Ranguna v Mazvita Adiola Ranguna 234/18* assets acquired by husband in a marriage of very short duration were not shared.

Stand 6652 Ruwa Township was acquired in 2003, prior to the solemnisation of the parties' marriage whether civil or customary. The plaintiff's evidence that she funded the purchase of the stand from her earnings in the United Kingdom was consistent and corroborated by the documentary evidence relating to the agreement of sale and the initial registration in her brother's name. The defendant's explanation that the seller insisted on the stand being registered in the brother's name was unsupported by any independent evidence and is improbable.

However, that being the case, the second point to comment upon is that the genesis of the property in question was ultimately not material. Although the property was acquired by the plaintiff before marriage, it was thereafter consciously and deliberately registered in both names. It is clear that the defendant as husband was not willing to invest his monies in a property which was solely in his wife's name. The action of putting it in both names "matrimonialised" the asset as "theirs". It was an intentional transfer the property to the marital pool for purposes of developing it together as opposed to gifting the husband a half share of the property. The act was in furtherance of a partnership approach to their marriage, with a view that both would contribute to the common endeavour of its full development in line with joint partnership and enterprise expected in a marriage.

Once a property is jointly registered the implication is that each party holds a 50- 50 stake in that property. See *Takafuma v Takafuma* 1994 (2) ZLR 103 (S). Joint registration lays the foundation for equality in sharing unless the facts of a case dictate otherwise. The legal principle captured in *Lafontant v Kennedy* 2000 (2) ZLR 280 (S) at p 284 by McNally JA as lead judge, is that where two persons own immovable property in undivided shares there is rebuttable presumption that they own it in equal shares. That presumption is strengthened particularly when they were married to each other at the time ownership was acquired. That is always the starting point. As further explained in that case, the court does not move from this position lightly.

At page 284 C-D

> "The court cannot move from that position on mere grounds of equity. It cannot give away A"s property to B on the mere grounds that it would fair and reasonable, or just and equitable, to do so. There must be a more solid foundation in law than that.
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> In *Nyamweda v Georgias* 1988 (2) ZLR 422 (S), the reason was that Miss Nyamweda was found by the court to have been an agent for her undisclosed principal, Mr Georgias. She was in effect his nominee at will. In *Young v van Rensburg* 1991 (2) ZLR 149 (S), KORSAH JA held that van Rensburg created Young "a nominee for the respondent (van Rensburg) (and) that on demand the appellant would transfer the farm to the respondent" (155C-D).
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> There are other situations in which the court can intervene such as fraud or mistake or, as I suggested as the hearing, an allegation that Mr Lafontant's share was a donation between spouses, voidable at the instance of the donor."

More importantly, within the context of rebutting the presumption of joint ownership the appeal court in *Lafontant* found that the former wife (Respondent) had given her former husband a half share as a nominee for convenience under the facts of that case. She travelled a lot by virtue of her international job. He was the one based where she had acquired the property and was the one on the ground. By instituting action, she was deemed to have terminated the nomination and the court held she was entitled to the whole property.

It is also important to distinguish this matter from the facts before me in that in *Lafontant*, the Matrimonial Causes Act was deemed in applicable to the facts as the parties had already divorced in Haiti where the husband was domiciled. It was therefore a simple property dispute and not one to which our Matrimonial Causes Act [Chapter 5:3] was applicable. In the case before me the Matrimonial Causes Act is totally applicable as the husband's domicile is Zimbabwe and parties are before me for a divorce which they contracted here.

Of significance as to how the property should be dealt with s7 (4) in particular Matrimonial Causes Act which gives guidelines to be considered in the distribution of property on divorce.

> (4) In making an order in terms of subsection (1) **an appropriate court shall have regard to all the circumstances of the case**, including the following—
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> a) the income-earning capacity; assets and other financial resources which each spouse and child has or is likely to have in the foreseeable future;
> b) the financial needs, obligations and responsibilities which each spouse and child has or is likely to have in the foreseeable future;
> c) the standard of living of the family, including the manner in which any child was being educated or trained or expected to be educated or trained;
> d) the age and physical and mental condition of each spouse and child;
> e) the direct or indirect contribution made by each spouse to the family, including contributions made by looking after the home and caring for the family and any other domestic duties;
> f) the value to either of the spouses or to a child of any benefit, including a pension or gratuity, which such spouse or child will lose as a result of the dissolution of the marriage;
> g) the duration of the marriage;
>
> and in so doing the court shall endeavour as far as is reasonable and practicable and, having regard to their conduct, is just to do so, to place the spouses and children in the position they would have been in had a normal marriage relationship continued between the spouses."

The evaluative factors that are to be taken into account in deciding whether the court ought to take the property from one spouse to another if need be are therefore of relevance.

The starting point of analysis in the endeavour to arrive at any just and equitable result is that regard is to be had to **all the circumstances of the case,** in other words all that there is and all that informs the actual reality that is on the ground. This allows the court to engage with the specific nuances of each case that ultimately affect the final outcome. This holistic approach makes sense in the court's use of its discretion to achieve fairness since a just and equitable outcome cannot be made outside an appreciation of all the factual circumstances.

In furtherance of a case being informed by all the circumstances that bear upon it, the Matrimonial causes Act in s 7 (1) recognises that in the pursuit of justice it may be necessary to apportion property from one spouse to another. The courts, in the use of their discretion, may therefore interfere with the 50:50 ratio in the distribution of the property where the facts or circumstances of a case call for a departure from the assumed position of equality of sharing of a matrimonial asset. Guidelines on what to consider under circumstances of the case include amongst others the financial needs and obligations of the parties and children,

earning capacity, the parties' contributions and efforts both direct and indirect, age and length of marriage amongst others.

The crux of the matter issue for determination is whether the parties should each get 50% of its value or whether there is a justification in taking part of defendant's portion and giving it to the defendant with regard to all the circumstances of the case including the specific issues that the court is enjoined to bear in mind. It is common cause that this is not their direct matrimonial home as their actual matrimonial home is in the United Kingdom. This is a property that they were to invest in as an asset in Zimbabwe. It was also put in both names subsequent to its initial acquisition on behalf of the plaintiff to allow both parties to invest in it as theirs.

In terms of financial needs, the plaintiff works as a nurse whilst the defendant is self-employed. Both parties are in their 40s so still have a considerable period before they reach retirement age. Their marriage, which lasted 19 years, was of moderate duration. The plaintiff as opposed to the defendant has been largely responsible for the financial needs of their two minor children, having had to take the defendant to court to obtain a maintenance order. Under the reality of these facts the financial needs and obligations of the plaintiff would appear to be certainly greater for the custodial parent who has already had to bear the greater burden in looking after the children and will likely continue to do so in the foreseeable future. The evidence shows that the plaintiff's direct contributions to the building of this asset in Zimbabwe was greater than that of the defendant. She was the one who took out a loan and she was the own who sent in money for the building project. Her evidence was more credible. The defendant's evidence regarding his alleged substantial financial contributions was vague, inconsistent, and unsupported by documentation. He was unable to quantify his contributions, identify dates, or explain material inconsistencies between his pleadings and oral testimony. In contrast, the plaintiff's evidence was detailed, internally consistent, and corroborated by independent witnesses who confirmed that she was the one who sent funds for the bulk of the construction and improvements. The defendant also went to length to tailor his evidence to fit the time when the asset was initially acquired by shifting the date of his customary marriage. He also lied in his plea that he had paid for her ticket. He is not an honest man.

While the court accepts that the defendant made some contribution, particularly towards the early stages of construction, the evidence does not support his claim to an equal share of the property more so against the backdrop where clearly the plaintiff has the greater burden of looking after the family and will probably do so for the foreseeable future. The

greater part of the house and its finishings beyond the foundation was financed by the plaintiff. .An equal division of an investment asset to which defendant contributed little would not be just and equitable in the circumstances of this case.

Taking into account all the evidence, the court is satisfied that the plaintiff made the overwhelmingly greater contribution towards both the initial acquisition of the of Stand 6652 Ruwa Township and its subsequent development to completion once it was registered in both their names. Also, as this is not their main matrimonial home but an investment to which one party contributed substantially more and will have greater financial needs, I see no reason why she should not be awarded the property, with the defendant being compensated for 20 % of the value of the property. These situations where women often find themselves playing both roles of caring for the family and making greater financial contributions to family assets whilst their spouse is relatively free to enjoy himself are increasingly common. These realities cannot be ignored by the courts.

Order

Accordingly, it is ordered as follows:

1. A decree of divorce is hereby granted.
2. Stand 6652 Ruwa Township is awarded to the plaintiff, **Clementina Zimucha**.
3. The defendant, **Silence Zimucha**, is declared entitled to **20% of the value** of Stand 6652 Ruwa Township, representing his contribution.
4. The plaintiff shall compensate the defendant for his 20% share within one year from the date of this order or such longer time as the parties may agree to in writing.
5. Each party shall bear their own costs.

TSANGA J……

Maruwa Machanzi, Plaintiff's Legal Practitioners
Mudimu Law Chambers, Defendant's Legal Practitioners